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§ 300.2. Government Exemption.

11 CA ADC § 300.2
Barclays Official California Code of Regulations

Barclays California Code of Regulations
Title 11. Law
Division 1. Attorney General
Chapter 4. Regulations Adopted Pursuant to the Supervision of Trustees and Fundraisers for Charitable Purposes Act (Refs & Annos)
Article 1. Registration, Reporting, and General Supervision of Trustees and Fundraisers

11 CCR § 300.2

§ 300.2. Government Exemption.

Currentness

(a) Governments in the United States and their agencies and subdivisions are exempt from the filing, registration, and reporting provisions of the Act. Public benefit corporations may fall under this exemption if they meet all of the following criteria:

(1) The bylaws or articles show that the public benefit corporation was founded by government, to benefit government and its constituents, and that at dissolution all funds are transferred to the founding government,

(2) The bylaws or articles demonstrate that government has the right to nominate or appoint members of the board, and

(3) The founding government has the ability to prevent the loss of charitable assets through inspection rights, the right to conduct audits, or to obtain regular financial reports.

Credits

NOTE: Authority cited: Sections 12585, 12586 and 12587, Government Code. Reference: Section 12583, Government Code.

HISTORY

1. New section filed 11-8-2019; operative 2-1-2020 pursuant to Government Code section 11343.4(b)(2) (Register 2019, No. 45).

2. Amendment of NOTE filed 3-26-2024; operative 3-26-2024 pursuant to Government Code section 11343.4(b)(3) (Register 2024, No. 13).

This database is current through 10/9/26 Register 2026, No. 41.

Cal. Admin. Code tit. 11, § 300.2, 11 CA ADC § 300.2

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